

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Charis Jones	Team: Squad #3	CCRB Case #: 202001551	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 02/08/2020 1:30 PM, Saturday, 02/08/2020 3:00 PM	Location of Incident: 3636 Prince Street, 109th Precinct stationhouse	Precinct: 109	18 Mo. SOL 8/8/2021	EO SOL 3/25/2022	
Date/Time CV Reported Sun, 02/09/2020 3:40 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/25/2020 11:04 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Nicholas Vandyke	00000	927819	GVSD Z1 VRTF
2. DT3 Charlie Harvell	2017	950568	GANG QS
3. DT3 Joseph Villalta	1959	943929	GANG QS
4. DT3 Narindra Mourgen	4671	942246	GANG QS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Michael Vila	2246	949771	GANG QS
2. DT3 Carlos Segovia	1915	937513	GANG QS
3. DT3 Michael Sogluizzo	3695	937567	GANG QS
4. DT3 Junior Celestin	2014	941524	GANG QS
5. LT Jakub Danisewicz	00000	948473	104 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Nicholas Vandyke	Abuse: In front of 3636 Prince Street in Queens, Lt. Vandyke authorized the stop of § 87(2)(b)	
B.LT Nicholas Vandyke	Abuse: In front of 3636 Prince Street in Queens, Lieutenant Nicholas Vandyke authorized the detainment of § 87(2)(b)	
C.DT3 Charlie Harvell	Abuse: In front of 3636 Prince Street in Queens, Detective Charlie Harvell frisked § 87(2)(b)	
D.DT3 Charlie Harvell	Abuse: In front of 3636 Prince Street in Queens, Detective Charlie Harvell searched § 87(2)(b)	
E.DT3 Joseph Villalta	Abuse: In front of 3636 Prince Street in Queens, Detective Joseph Villalta frisked § 87(2)(b)	
F.DT3 Joseph Villalta	Abuse: In front of 3636 Prince Street in Queens, Detective Joseph Villalta searched § 87(2)(b)	
G.DT3 Charlie Harvell	Abuse: At the 109th precinct stationhouse, Detective Charlie Harvell damaged § 87(2)(b)'s property.	
H.LT Nicholas Vandyke	Abuse: At the 109th precinct stationhouse, Lieutenant Nicholas Vandyke authorized the strip-search of § 87(2)(b)	
I.LT Nicholas Vandyke	Abuse: At the 109th precinct stationhouse, Lieutenant Nicholas Vandyke did not obtain medical treatment for § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
J.DT3 Narindra Mourgen	Discourtesy: At the 109th precinct stationhouse, Detective Narindra Mourgen spoke discourteously to § 87(2)(b)	
K.DT3 Narindra Mourgen	Abuse: At the 109th precinct stationhouse, Detective Narindra Mourgen refused to provide his name to § 87(2)(b)	
L.DT3 Narindra Mourgen	Abuse: At the 109th precinct stationhouse, Detective Narindra Mourgen refused to provide his shield number to § 87(2)(b)	

Case Summary

On February 9, 2020, § 87(2)(b) called IAB and filed this complaint, generating original log # 2020-4332. The CCRB received the case on February 25, 2020.

On February 8, 2020, at approximately 1:30 p.m., Lieutenant Nicholas Vandyke, Detective Charlie Harvell, Detective Joseph Vialta, Detective Michael Vila, Detective Carlos Segovia, Detective Narinadra Mourgen, Detective Michael Sogluizzo, and Detective Junior Celestin, all assigned to Queens South Gang Squad, were canvassing the 109th Precinct area regarding a long-term investigation into § 87(2)(b). Lt. Vandyke instructed Det. Harvell and Det. Vialta to stop and detain § 87(2)(b) (**Allegation A and B: Abuse of Authority, § 87(2)(g)**). Det. Harvell and Det. Vialta frisked and searched § 87(2)(b) (**Allegations C-F: Abuse of Authority, § 87(2)(g)**).

§ 87(2)(b) was subsequently transported to the 109th Precinct stationhouse. At the stationhouse, Det. Harvell allegedly cut the inside of § 87(2)(b)'s jacket (**Allegation G: Abuse of Authority, § 87(2)(g)**). Det. Vila and Det. Sogluizzo strip searched § 87(2)(b) per Lt. Vandyke's instruction (**Allegation H: Abuse of Authority, § 87(2)(g)**).

After he was strip searched, § 87(2)(b) was lodged in a holding cell where he remained until he was released. While inside of the holding cell § 87(2)(b) requested medical attention from Lt. Vandyke who allegedly refused to obtain it for him (**Allegation I: Abuse of Authority, § 87(2)(g)**).

§ 87(2)(b) was eventually released from the stationhouse. As he exited the stationhouse, § 87(2)(b) asked Det. Mourgen for his name and shield number. Det. Mourgen allegedly responded, "Get the fuck out of my face," and did not provide his name and shield number to § 87(2)(b) (**Allegation J: Discourtesy, § 87(2)(g)**; **Allegations K and L: Abuse of Authority, § 87(2)(g)**).

§ 87(2)(b) was initially arrested for § 87(2)(a) 160.50. This arrest was subsequently voided and sealed (Board Review 01).

There is no video evidence regarding this incident. Officers assigned to the Queens Gang South were not assigned body-worn cameras (BWC) at the time of the incident. A request for stationhouse footage was submitted for the incorrect date, and thus no footage of the incident was obtained.

Narcotics Bureau Queens South conducted a concurrent investigation into the same incident (Board Review (Board Review 22)).

Findings and Recommendations

Allegation (A) Abuse of Authority: In front of 3636 Prince Street in Queens, Lieutenant Nicholas Vandyke authorized the stop of § 87(2)(b).

Allegation (B) Abuse of Authority: In front of 3636 Prince Street in Queens, Lieutenant Nicholas Vandyke authorized the detainment of § 87(2)(b).

Allegation (C) Abuse of Authority: In front of 3636 Prince Street in Queens, Detective Charlie Harvell frisked § 87(2)(b).

Allegation (D) Abuse of Authority: In front of 3636 Prince Street in Queens, Detective Joseph Vialta frisked § 87(2)(b).

Allegation (E) Abuse of Authority: In front of 3636 Prince Street in Queens, Detective Charlie

Harvell searched § 87(2)(b)
Allegation (F) Abuse of Authority: In front of 3636 Prince Street in Queens, Detective Joseph Vialta searched § 87(2)(b)
Allegation (G) Abuse of Authority: At the 109th precinct stationhouse, Detective Charlie Harvell damaged § 87(2)(b) s property.
Allegation (H) Abuse of Authority: At the 109th precinct stationhouse, Lieutenant Nicholas Vandyke authorized the strip-search of § 87(2)(b)

§ 87(2)(e)

It is also undisputed that prior to the incident, Lt. Vandyke informed Det. Harvell, Det. Vialta, Det. Vila, Det. Segovia, Det. Celestin, Det. Mourgen and Det. Sogluizzo that they were going to do enforcement for this investigation and instructed all of them to be within the vicinity of the 109th Precinct (Board Reviews 4-12). It is also undisputed that Lt. Van Dyke authorized the stop and strip-search of § 87(2)(b) at the 109th Precinct stationhouse (Board Review 04).

§ 87(2)(b) (Board Review 13) testified that his son's godfather dropped him off at the corner of 37th Avenue and College point Boulevard so that § 87(2)(b) could walk to get food. § 87(2)(b) was wearing black jeans, black and red shoes, a hooded shirt, and a blue winter jacket. § 87(2)(b) s identification and debit card were loose in his front left pants pocket. § 87(2)(b) s tissues, Chapstick, and keys were in his left and right jacket pockets. § 87(2)(b) started to cross the street at 37th Avenue and Prince Street. As § 87(2)(b) crossed the street, Det. Harvell and Det. Vialta walked towards him and grabbed § 87(2)(b) s upper bicep. Det. Harvell and Det. Vialta walked him to the North corner of 37th Avenue and Prince Street where he was placed against a wall. § 87(2)(b) asked Det. Harvell and Det. Vialta what they were doing and why he was being stopped. Det. Harvell and Det. Vialta did not answer. Det. Harvell and Det. Vialta went into § 87(2)(b) s jacket pockets and removed his phone and his phone charger and went into his pants pockets and removed his identification. § 87(2)(b) overheard one of the Detectives say, "Is this the guy we're looking for?" Det. Harvell and Det. Vialta asked for § 87(2)(b) s name and § 87(2)(b) provided it to him. Det. Harvell and Det. Vialta had § 87(2)(b) spread his legs and they both frisked § 87(2)(b) s legs as well as his groin area. At that time, approximately eight plainclothes officers arrived. § 87(2)(b) did not interact with any of the additional responding officers. Det. Harvell and Det. Vialta then transported § 87(2)(b) to the 109th Precinct stationhouse. At the stationhouse, Det. Harvell searched § 87(2)(b) s jacket pockets while § 87(2)(b) stood at the front desk. During the search, Det. Harvell reached into § 87(2)(b) s right jacket pocket and used a blade to cut a hole on the inside of it. § 87(2)(b) was brought to a cell located to the left of the front desk all the way in the back of the stationhouse out of view. § 87(2)(b) was alone in the cell. Det. Vila stood inside the holding cell and Det. Segovia stood in holding cell entrance. Approximately five additional officers stood outside of the cell in the hallway facing § 87(2)(b). § 87(2)(b) was unable to provide physical descriptions of these officers. Det. Vila and Det. Segovia instructed § 87(2)(b) to remove his socks and shoes and to turn them inside out, which § 87(2)(b) did. Det. Vila ordered § 87(2)(b) to take off his pants, boxers, and shirt. § 87(2)(b) complied. § 87(2)(b) handed his clothing to Det. Vila who searched it and handed it to Det. Segovia. Det. Segovia searched the clothing and handed it to the officers in the hallway who searched the clothing as well. Once § 87(2)(b) was completely undressed, Det. Vila ordered § 87(2)(b) to turn towards the wall, squat, and cough, which § 87(2)(b) complied with. After § 87(2)(b) squatted on the ground and coughed, Det. Vila told him to get dressed. § 87(2)(b) got dressed and was escorted back to the front desk (Board Review 13).

Lt. Vandyke (Board Review 04, 25) testified that he met with Det. Harvell, Det. Vialta, Det.

Celestin, Det. Mourgen, Det. Sogluizzo, Det. Segovia, and Det. Vila at the Queens South Violet Crimes Squad Office prior to going out into the field. During this meeting, Lt. Vandyke discussed tactics (such as who is dressed in what clothing, assigned to what vehicle, and radio channels) vehicle assignments, and the purpose of going out into the field, which was to conduct surveillance for a long-term investigation involving § 87(2)(b). Lt. Vandyke stated that the members of the field team were privy to the investigation before the incident. Lt. Vandyke could not recall if he gave any directions to the Detectives on what to do if they saw § 87(2)(b) § 87(2)(e), § 87(2)(f)

§ 87(2)(b) The vehicle then traveled northbound on College Point Boulevard, which is where Lt. Vandyke first observed § 87(2)(b) exit the vehicle. It was during this time that Lt. Vandyke made the determination that the conditions necessary to make an arrest had been met. Lt. Vandyke began to follow § 87(2)(b) until he lost sight of him. Lt. Vandyke then went over the radio and provided a description of § 87(2)(b) and the direction he was walking to members of the field team who were stationed within the vicinity. Lt. Vandyke also advised the field team members he had lost sight of him and instructed them to arrest § 87(2)(b). Lt. Vandyke exited his vehicle and followed § 87(2)(b) for a few seconds and was approximately eight car lengths behind him. § 87(2)(b) turned around and observed Lt. Vandyke. Lt. Vandyke stated that § 87(2)(b) § 87(2)(b)'s eyes widened, and he immediately tensed his body. This indicated to Lt. Vandyke that § 87(2)(b) recognized him to be a police officer. § 87(2)(b) was not holding anything in his hands and Lt. Vandyke did not observe any objects or bulges on § 87(2)(b)'s person. § 87(2)(b) § 87(2)(b) turned back around, lift his hoodie, went into his pants with his right hand and made a shifting motion. Based on Lt. Vandyke's training and experience, § 87(2)(b)'s actions were consistent with securing contraband items. Lt. Vandyke still did not see any objects on § 87(2)(b) § 87(2)(b)'s person at that time. § 87(2)(b) disappeared from Lt. Vandyke's sight due to a hill. Lt. Vandyke went over the radio and informed his team that he had lost sight of § 87(2)(b). Several seconds later, Det. Harvell went over the radio and informed Lt. Vandyke that he had had stopped § 87(2)(b) at the corner of Prince Street and 37th Avenue. Lt. Vandyke walked to the location and observed that § 87(2)(b) was handcuffed with Det. Harvell and Det. Vialta standing on either side of him. Lt. Vandyke observed Det. Harvell frisk § 87(2)(b) from the neck down and go into his coat and pants pocket while Det. Vialta held § 87(2)(b)'s arms. After searching § 87(2)(b) Det. Harvell informed Lt. Vandyke that he felt an abnormal mass near § 87(2)(b)'s waistband area. Det. Harvell could not feel the edges of whatever the object was. Lt. Vandyke did not personally observe the mass. § 87(2)(b) stood still and did not make any statements. Lt. Vandyke did not give any instructions at that time to Det. Harvell or Det. Vialta at the incident location. Det. Harvell and Det. Vialta put § 87(2)(b) into their vehicle and took him to the 109th Precinct for because he was under arrest. Det. Mourgen drove Lt. Vandyke back to the stationhouse. At the stationhouse, Lt. Vandyke authorized (on his own and not based on a request from the detectives) Det. Vila and Det. Segovia to conduct a strip search of § 87(2)(b) based on the fact that § 87(2)(b) went into his pants area when he observed Lt. Vandyke as well as Det. Harvell's statements about the abnormal mass on § 87(2)(b)'s person. Det. Vila and Det. Segovia brought § 87(2)(b) back to the rear holding cell to conduct the strip search. Lt. Vandyke was not physically present for the strip search; however, he watched the strip search from the camera system at the desk. Lt. Vandyke observed § 87(2)(b) remove one item of clothing at a time and hand it to Det. Vila and Det. Segovia who then checked it. Once all of § 87(2)(b)'s clothes were removed, § 87(2)(b) squatted on the ground after which he got dressed. No items or objects were recovered as a result of the strip search. Lt. Vandyke eventually released § 87(2)(b)

§ 87(2)(b) his arrest was voided because no narcotics were recovered from his person

Det. Harvell, Det. Vialta, Det. Segovia, Det. Vila, Det. Celestin and Det. Sogluizzo (Board Reviews 05-12) all testified that they were not given any information about the long-term investigation they were doing enforcement for that involved § 87(2)(b) and a suspected narcotics transaction. Before going into the field, Lt. Vandyke provided them with § 87(2)(b)'s name, a description of § 87(2)(b) and a description of the vehicle they were canvassing for. Lt. Vandyke instructed members of the field team to standby until they were ordered to stop § 87(2)(b). The Detectives also testified that they all received a radio call from Lt. Vandyke who informed them that he observed § 87(2)(b) walking and provided them with a physical description of § 87(2)(b) and what he was wearing.

Det. Celestin (Board Review 10) testified that he received point-to-point radio transmission from Lt. Vandyke stating that he had observed the case subject and the vehicle in question and to report to a specific location. Det. Celestin could not recall the specific location provided by Lt. Vandyke. Det. Sogluizzo drove Det. Celestin to the location and parked across the street. Det. Celestin exited the vehicle and observed the vehicle in question parked with one individual inside. Moments later § 87(2)(b) entered the vehicle, which then drove a few blocks North. Once the vehicle stopped, Det. Celestin observed § 87(2)(b) exit the vehicle and walk. Det. Celestin attempted to follow § 87(2)(b) on foot but lost sight of him because he was approximately three blocks behind him. Det. Celestin could not recall any specific observations he made regarding anything on § 87(2)(b)'s person because he was too far away to see. Moments later, Det. Celestin received a point-to-point radio transmission stating that § 87(2)(b) had been stopped in the vicinity of Prince Street and 37th Avenue. Det. Celestin walked to the location and observed that § 87(2)(b) had been stopped by Det. Harvell and Det. Vialta.

Det. Harvell (Board Review 05) testified that he and Det. Vialta were parked in their unmarked vehicle at the corner of 37th Avenue and Prince Street when they received a radio transmission from Lt. Vandyke. Lt. Vandyke stated that he had observed § 87(2)(b) provided a description of what § 87(2)(b) was wearing, and instructed the Detectives to stop him. Det. Harvell was approximately 10 to 20 feet away from § 87(2)(b) when he first observed him on foot. Det. Harvell and Det. Vialta exited their vehicle and approached § 87(2)(b) on either side. Det. Harvell did not observe any bulges or objects on § 87(2)(b)'s person. § 87(2)(b) did not make any statements as the officers approached and stopped him. Det. Harvell frisked and searched § 87(2)(b) because § 87(2)(b) was under arrest at the time, although Det. Harvell did not know what for. Det. Harvell frisked § 87(2)(b)'s, legs, arms, back area, and waist band area. Det. Harvell also went into § 87(2)(b)'s pockets, but he could not recall which pockets. Det. Harvell did not feel anything abnormal on § 87(2)(b)'s body and he did not convey that he felt anything out of the ordinary to Lt. Vandyke or the other officer. Det. Harvell did not recover any contraband from § 87(2)(b)'s person. Det. Harvell could not recall if Det. Vialta frisked or searched § 87(2)(b). Lt. Vandyke and the additional field team members arrived at the location soon after § 87(2)(b) had been stopped. § 87(2)(b) was subsequently transported to the 109th Precinct stationhouse. At the stationhouse, § 87(2)(b) was brought to the front desk. Lt. Vandyke stood behind the front desk and signed him in. § 87(2)(b) was searched in front of the desk again. Det. Harvell could not recall if he searched § 87(2)(b) at the front desk. Det. Harvell did not cut the inside of § 87(2)(b)'s jacket nor was he ever made aware that § 87(2)(b)'s jacket had been cut. Det. Harvell observed officers walk § 87(2)(b) to the cell area. At that point, Det. Harvell went to the muster room. Det. Harvell did not see or interact with § 87(2)(b) again.

Det. Villalta's (Board Review 06) statement was generally consistent with Det. Harvell's regarding the information they received from Lt. Vandyke over the radio about stopping § 87(2)(b) as well as his initial observations of § 87(2)(b). Det. Vialta could not recall if he or Det. Harvell frisked § 87(2)(b) but stated that § 87(2)(b)'s waistband area, ankles, wrist, chest area, and back were frisked because he was under arrest at that time, although Det. Vialta did not know what for. Det. Vialta could not recall if § 87(2)(b) was searched. Det. Vialta could not recall if Det. Harvell informed him that he felt an abnormal mass on § 87(2)(b)'s person. Nothing was recovered from § 87(2)(b)'s person. Lt. Vandyke arrived at the location a few seconds later on foot as Det. Harvell and Det. Vialta placed § 87(2)(b) into handcuffs. Det. Vialta and Det. Harvell transported § 87(2)(b) to the stationhouse. At the stationhouse, Det. Vialta stated that he was present when an officer searched § 87(2)(b) at the front desk but he did not recall who conducted the search. Det. Vialta could not recall if § 87(2)(b)'s jacket was removed at the front desk. Det. Vialta did not cut into the inner pocket of § 87(2)(b)'s jacket nor did he know of any other officer doing so. § 87(2)(b) was then escorted back to the cell area. Det. Vialta did not have any further interaction with § 87(2)(b).

Det. Vila (Board Reviews 07, 08) testified that he went to the incident location with Det. Segovia when they heard over the radio that § 87(2)(b) had been stopped. Upon arrival, Lt. Vandyke told Det. Vila that § 87(2)(b) had been searched and nothing was recovered from his person. After § 87(2)(b) was removed from the scene, Det. Vila and Det. Segovia drove to the 109th Precinct stationhouse. § 87(2)(b) was already lodged in the holding cell when he arrived at the stationhouse. Lt. Vandyke ordered Det. Vila to conduct a strip search of § 87(2)(b). Det. Vila did not know why Lt. Vandyke authorized for § 87(2)(b) to be strip searched, all he knew was that the Lt. was in charge of making that determination. Det. Vila was not made aware of anything of concern on § 87(2)(b)'s person. Det. Vila conducted the strip search with Det. Segovia at the rear cells in the 109th Precinct, which yielded negative results. Det. Vila stated that Lt. Vandyke observed the strip search from the security cameras located at the front desk because it was procedure to have a supervisor present while a strip search was conducted. After the strip search, § 87(2)(b) got dressed and Det. Vila and Det. Segovia escorted him to the front desk. Lt. Vandyke stood behind the front desk and advised § 87(2)(b) that he could leave.

Det. Segovia's (Board Review 09) testimony consistent with Det. Vila's regarding his initial observations on scene as well as Lt. Vandyke's authorization and supervision of the strip search he and Det. Vila conducted of § 87(2)(b). After he conducted the strip search, Det. Segovia went back to the arrest processing room and finished his paperwork.

Lt. Vandyke marked in his memo book, "§ 87(2)(e), § 87(2)(f), § 87(2)(b)

§ 87(2)(b) 10-92 by Det. Vila. 14:25; Strip search conducted in rear cell by Det. Vila, Det. Segovia based on undersigned's observations of subject while on foot spotting surveillance team and moving right hand into inside of pants as well as shifting/re-aligning pants after removing hand. Det. Harvell who frisked post arrest noted that he felt a mass in underwear area. Authorized by undersigned-documented in command log under page 228- negative results" (Board Review 15).

After reviewing his memo book, Lt. Vandyke stated that he did not make the initial observation of § 87(2)(b) and the "case subject" (Board Review 25). Det. Celestin made the observations on College Point Boulevard and relayed that information over the radio. Lt. Vandyke could not recall any additional details Det. Celestin provided to him at that time. Lt. Vandyke stated that § 87(2)(b)

§ 87(2)(b) was considered “arrestable” as soon as he was observed by Det. Celestin. § 87(2)(e)
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(e)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

The investigation obtained the DD5 prepared by Lt. Vandyke on the incident date in regards to a long-term investigation involving § 87(2)(b) (Board Review 14 and IA # 254). § 87(2)(e), § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

The narrative portion of § 87(2)(b)'s arrest report states: “§ 87(2)(a) 160.50
[REDACTED]
[REDACTED] (Board Review 01).

The Command Log for the incident date from the 109th Precinct noted that Lt. Vandyke authorized § 87(2)(b) to be strip searched by Det. Vila and Det. Segovia and that the search yielded negative results (Board Review 16).

The investigation received negative results for any property vouchers that were prepared as a result of this incident (Board Review 17).

People v. De Bour, 40 N.Y.2d 210 established that an officer may stop an individual if they reasonably suspect that the person has committed, is committing, or will imminently commit a crime (Board Review 23).

NY Criminal Procedure Law Section 140.10 states that a police officer may arrest a person when he or she has reasonable cause to believe that such person had committed such offense in his or her presence and a crime when he or she has reasonable cause to believe that such person has committed such crime, whether in his or her presence or otherwise (Board Review 24).

NYPD Patrol Guide Procedure 208-05 requires officers to conduct a frisk and/or search after placing an individual under arrest. The same procedure also defines a strip search as any search in which an individual’s undergarments and/or private areas are exposed or in which an individual’s clothing is removed, listed up, or pulled down to exposed undergarments or private areas. A strip search may not be conducted routinely in connected with an arrest. Strip searches may only be

conducted with the knowledge and approval of the arresting officer's immediate supervisor or the borough Court Section supervisor. A supervisor will authorize a strip search only in when an arrest officer has articulated a reasonable suspicion that the individual's concealing evidence, contraband, or a weapon upon their person or in their clothing in such a manner that they may not be discovered by other search methods. A strip search shall be conducted only by an officer of the same gender as the arrested person, in a secure area and in utmost privacy (Board Review 18).

§ 87(2)(g)

§ 87(2)(e)

Det. Celestin testified that Lt. Vandyke instructed him to go to a specific location, which is where Det. Celestin initially observed

§ 87(2)(b) enter and exit a vehicle known to the long-term investigation. § 87(2)(g)

§ 87(2)(b) testified that Det. Harvell frisked and searched him after he was stopped. Det. Harvell acknowledged that he frisked and searched § 87(2)(b) and stated that he did so because § 87(2)(b) was under arrest at that time. Det. Harvell could not recall if Det. Vialta frisked and searched § 87(2)(b) Lt. Vandyke testified that he gave instructions via the radio to arrest § 87(2)(b)

§ 87(2)(b) § 87(2)(g)

§ 87(2)(b) testified that Det. Vialta frisked and searched him after he was stopped. Det. Harvell and Det. Vialta could not recall if Det. Vialta frisked or searched § 87(2)(b) § 87(2)(g)

§ 87(2)(b) stated that Det. Harvell cut into his jacket pocket while he was at the front desk of the stationhouse. Det. Harvell testified that he did not cut the inside of § 87(2)(b)'s jacket nor was he ever made aware that § 87(2)(b)'s jacket had been cut. Det. Vila and Det. Segovia both denied observing any officer cut into § 87(2)(b)'s jacket. § 87(2)(g)

It is undisputed that Lt. Vandyke authorized Det. Vila and Det. Segovia to strip search § 87(2)(b) at the stationhouse. Lt. Vandyke testified that he authorized the strip search based on his

initial observation of § 87(2)(b) going into his pants area while walking as well as Det. Harvell's statements about feeling an abnormal mass on § 87(2)(b)'s person. Det. Harvell testified that he did not feel anything abnormal on § 87(2)(b)'s person and thus did not convey that he did to Lt. Vandyke at any point. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (I) Abuse of Authority: At the 109th precinct stationhouse, Lieutenant Nicholas Vandyke did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) (Board Review 13) testified that he was put into a cell behind the front desk after he was strip searched. Once in the cell, § 87(2)(b) observed an influx of officers come into the stationhouse and assumed that there was a shift change. While in the cell, § 87(2)(b) began to feel pain in his chest. § 87(2)(b) asked an officer, to whom he referred to as the "new desk sergeant," for medical assistance. § 87(2)(b) was unable to provide a physical description of this officer. The officer told § 87(2)(b) that he would get § 87(2)(b)'s arresting officer. Moments later, Lt. Vandyke came to § 87(2)(b)'s cell and asked him what was going on. § 87(2)(b) explained that he was having pain in his chest. Lt. Vandyke asked § 87(2)(b) if he had any medical conditions or if he was just feeling anxious because he was at the stationhouse. § 87(2)(b) told Lt. Vandyke that his chest was feeling tight and that he wanted medical attention. Lt. Vandyke said, "Okay" and then walked away. Lt. Vandyke did not tell § 87(2)(b) that he was going to call an ambulance for him. § 87(2)(b) never received medical attention.

Lt. Vandyke (Board Reviews 04, 26) testified that after the strip search was conducted, § 87(2)(b) was placed in a holding cell for approximately one hour. During this time, § 87(2)(b) informed Lt. Vandyke that he was feeling some shortness of breath. Lt. Vandyke was never informed by another officer that § 87(2)(b) was feeling shortness of breath. Lt. Vandyke did not ask him any additional questions and said that he would get him an ambulance. Lt. Vandyke informed § 87(2)(b) that he was preparing his voided arrest and that by the time the ambulance got there, he would be free to go. § 87(2)(b) looked surprised and said, "Does that mean I am not going through the system?" Lt. Vandyke explained what a voided arrest was and that he would not be going through the system. § 87(2)(b) replied that he was feeling fine, was no longer having shortness of breath, and did not want to go to the hospital. Lt. Vandyke asked § 87(2)(b) if he was sure. § 87(2)(b) did not respond. Lt. Vandyke exited the cell area, waited two minutes, and then reentered and asked § 87(2)(b) if he was sure he was feeling okay and did not want to go to the hospital. § 87(2)(b) responded that he was not going to repeat himself and that he was done answering anymore questions.

Sgt. Jacob Danisewicz (Board Review 27) testified that he was working as the desk officer at the time of the incident. Lt. Danisewicz did not have any recollection of the incident, despite being provided with a description of it. Lt. Danisewicz did not recall interacting with § 87(2)(b) at any point during his tour and denied that he refused to obtain medical treatment for him.

The 109th Precinct Roll Call for Tour 3 confirmed that Sgt. Danisewicz, who has since been promoted to Lieutenant, was the desk officer from 2:50 p.m. to 11:47 p.m. on the incident date (Board Review). The Prisoner Holding Pen Roster revealed that § 87(2)(b) was alone in the holding cell from 2:25 p.m. to 3:30 p.m., which is when he was released (Board Review 25).

§ 87(2)(g)

Allegation (J) Discourtesy: At the 109th precinct stationhouse, Detective Narindra Mourgen spoke discourteously to § 87(2)(b)

Allegation (K) Abuse of Authority: At the 109th precinct stationhouse, Detective Narindra Mourgen refused to provide his name to § 87(2)(b)

Allegation (L) Abuse of Authority: At the 109th precinct stationhouse, Detective Narindra Mourgen refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) (Board Review 13) stated that upon his release, he asked Lt. Vandyke for the names of the officers he had encountered on that day. Lt. Vandyke wrote down three names and shield numbers on a piece of paper. § 87(2)(b) told Lt. Vandyke that there were more than three officers. Lt. Vandyke wrote additional names and shield numbers and handed the paper to § 87(2)(b). § 87(2)(b) walked to the front desk and observed Det. Mourgen standing alone in the doorway to his left. § 87(2)(b) recognized Det. Mourgen who was present when he was initially stopped. No other officers were within the vicinity of Det. Mourgen. § 87(2)(b) asked Det. Mourgen if he could see his shield number, because he wanted to confirm that Lt. Vandyke had given him the correct information. Det. Mourgen responded, “Get the fuck out of my face.” § 87(2)(b) did not respond and left the stationhouse. Outside of the stationhouse, § 87(2)(b) observed Lt. Vandyke and Det. Mourgen get into a vehicle. § 87(2)(b) approached the driver’s side of the vehicle, where Det. Mourgen was seated, and asked Lt. Vandyke if he could have Det. Mourgen’s shield number. § 87(2)(b) assumed that Lt. Vandyke was Det. Mourgen’s supervisor and that he would compel Det. Mourgen to provide that information. Lt. Vandyke responded, “I can’t make him do that.” Det. Mourgen remained in the vehicle. § 87(2)(b) then left the location.

Det. Mourgen (Board Review 11) testified that he was about to exit the stationhouse when Lt. Vandyke asked him for his shield number. Det. Mourgen provided his shield number and Lt. Vandyke wrote it down. Det. Mourgen proceeded outside. § 87(2)(b) exited the stationhouse and was cursing. § 87(2)(b) approached Det. Mourgen and asked for his name and shield number. Det. Mourgen responded, “Det. Mourgen, 4671 is my shield.” Det. Mourgen did not say, “Get the fuck out of my face,” to § 87(2)(b). Det. Mourgen did not refuse to provide § 87(2)(b) with his name and shield number. § 87(2)(b) asked Det. Mourgen for a pen. Det. Mourgen informed § 87(2)(b) that he did not have a pen, but that Lt. Vandyke wrote everyone’s name and shield number down on a piece of a paper. Approximately 10 minutes later, Lt. Vandyke exited the stationhouse and got into the vehicle. Lt. Vandyke did not interact with § 87(2)(b).

Lt Vandyke (Board Review 04) confirmed that he wrote the names of the Detectives on a piece of a paper and provided it to § 87(2)(b) who then exited the stationhouse. Lt. Vandyke exited the stationhouse moments after § 87(2)(b) and observed § 87(2)(b) verbally engaged with Det. Mourgen. Lt. Vandyke could not hear the specifics of their conversation but stated that § 87(2)(b) appeared to be unhappy. Det. Mourgen stood there and stared at § 87(2)(b). § 87(2)(b) told Lt. Vandyke that Det. Mourgen was refusing to provide his name and shield number to him. Lt. Vandyke instructed Det. Mourgen to provide § 87(2)(b) with that information and Det. Mourgen complied. Lt. Vandyke did not hear Det. Mourgen say, “Get the fuck out of my face.” Lt. Vandyke did not hear Det. Mourgen refuse to provide § 87(2)(b) with his name or shield number.

§ 87(2)(b) provided the investigation with a piece of paper that Lt. Vandyke gave to him. It contains the names and shield numbers for Det. Harvell, Det. Vialta, Det. Celestin, Det. Vila, Det. Sogluizzo, Det. Segovia, Det. Mourgen, and Lt. Vandyke (Board Review 02)

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to five CCRB complaints and has been named as a victim in 14 allegations (Board Review 19):
 - § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- Lt. Vandyke has been a member of service for 19 years and has been a subject in eight CCRB complaints and 20 allegations, five of which were substantiated:
 - 201115628 involved substantiated allegations of a search of person and vehicle search against Lt. Vandyke. The Board recommended charges. The NYPD imposed no disciplinary actions.
 - 201201695 involved a substantiated allegation of a stop of a person against Lt. Vandyke. The Board recommended charges. Lt. Vandyke was found not guilty at trial. The NYPD imposed no disciplinary actions.
 - 201203655 involved a substantiated allegation of a stop of person against Lt. Vandyke. The Board recommended charges. The NYPD imposed no disciplinary action due to the statute of limitations.
 - § 87(2)(g) [REDACTED]
[REDACTED]
- Det. Harvell has been a member of service for nine years and has been a subject in three CCRB complaints and 13 allegations, one of which was substantiated:
 - 201510836 involved a substantiated allegation of a frisk against Det. Harvell. The Board recommended formalized training. The NYPD imposed formalized training. § 87(2)(g) [REDACTED]
[REDACTED]
- Det. Villalta has been a member of service for 14 years and has been a subject in four CCRB complaints and 12 allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]

- Det. Mourgen has been a member of service for 14 years and has been named a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming physical and psychological injuries, as well as conscious pain and suffering, loss of enjoyment of life, embarrassment, humiliation, and economic loss and seeking \$2,000,000 as redress as redress (Board Review 20). On January 12, 2022, a 50H hearing inquiry was submitted electronically to the New York City Office of the Comptroller. The results will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 3

Investigator:	<u>Charis Jones</u>	<u>Inv. Charis Jones</u>	<u>02/23/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Olga Golub</u>	<u>IM Olga Golub</u>	<u>02/23/2021</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date